TALENT NDLOVU

versus

THE PRESIDING MAGISTRATE G.R. SITHOLE N.O

AND

THE STATE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 24 FEBRUARY, 2 MARCH & 13 MARCH 2026

Application for review

K Nxumalo, for the applicant
K. M Guveya, for the respondent

NDUNA J: The applicant in this matter appeared before the first respondent facing allegations of stock theft in breach of *Section 114 of the Criminal Law (Codification & Reform) Act [Chapter 9:23]*. The first respondent convicted the said applicant on two counts of stock theft. The applicant has set his application for a review basing on four grounds of review.

The applicant alleges the following grounds of review: -

1. The proceedings were grossly irregular as the 1st Respondent did not explain procedural rights to the unrepresented accused person throughout the trial, particularly the right to call witnesses at the commencement of trial;
2. The proceedings were grossly irregular as the 1st Respondent failed to keep a proper record of proceedings;
3. The 1st Respondents' decision to exclude the 2nd Defence witness from continuing to testify was grossly unreasonable as it was done without deciding on the competency or otherwise of the witness to testify ultra vires the Criminal Procedure and Evidence Act [Chapter 9:01];
4. The 1st Respondents' decision to bar the 3rd Defence witness from testifying for the reason that he cannot be a credible witness as he was in court following

the proceedings was grossly unreasonable and in violation of the right of the accused to be heard

The following relief is accordingly prayed for: -

a) That the present application for Review Succeeds;

b) That the criminal proceedings under case number CRB Number TSHO 270/25 are not in accordance with real and substantial justice;

c) That the conviction and sentence under case number CRB Number TSHO 270/25 be and is hereby quashed.

d) That the Criminal Proceedings under case number CRB Number TSHO 270/25 be and is hereby remitted to the Court a quo for a trial de novo before a different Magistrate.

e) That there be no order as to costs.

The respondent opposes the application for review it being held that: -

a) The applicant was advised of his right to legal representation and he elected to act on his own in the trial.
b) That a clean record was kept by the applicant
c) That the first respondent kept a clean record of proceedings,
d) That the witness Albert Dube testified and it was proved that he could not testify and he was asked to leave the witness' stand
e) That the first respondent held an inquiry after he adjudged the witness could not testify a she was in court during court proceedings and a finding was made that this impacted negatively on his credibility

On the day of the hearing of the application, the respondent abandoned the first, second, and third grounds of review. The effect of this abandonment was that only two grounds of review remained for determination, namely those set out in paragraphs (d) and (e) above.

The matter then turned on issues relating to the competency of witnesses. Questions concerning the competency of a witness must be determined with reference to the

governing statutory framework. In Zimbabwe, this issue is regulated by the *Criminal Procedure and Evidence Act [Chapter 9:07].*

Section 244 of the Act provides the legal basis for determining whether a person is competent to testify as a witness. The section stipulates that every person is competent to give evidence in criminal proceedings unless the court finds that, by reason of youth, old age, mental illness, or any similar cause, the person lacks the capacity to understand the questions put to them or to give rational answers thereto. Consequently, any challenge or inquiry regarding the competency of a witness must be assessed within the parameters established by section 244 of the Act which reads

> 244 No person to be excluded from giving evidence except under this Act
>
> Every person not expressly excluded by this Act from giving evidence shall be competent and compellable to give evidence in a criminal case in any court in Zimbabwe.

What is read and is brought about by this provision is that every person is competent to give evidence unless he is lawfully excluded by law. Where there is no such exclusion, every witness shall testify for the state or the defence.

In the trial being reviewed, the first witness whose competence was placed in issue was one Admire Gumbo. He was called by the defence and testified as their witness. The witness was duly sworn in before giving evidence. After taking the oath, he proceeded to respond to questions put to him during examination.

> During the course of his testimony, the witness was then asked the following question
> Q: *When you discovered that the mother had died what did you do?*
> *A: Witness not understanding the question*

Then what follows the record shows that he was promptly put under cross examination. The following question was asked:

> Q: *How are you related to witness 1?*
> *A: Witness not understanding the question*

What then follows was re – examination of the same witness. And the following question was put to the witness: -

Q: When you found the cow in the dam what did you do?
A: Not audible again

Then, the accused was asked if he had any witness, to which he said that he had one more witness. The witness was one Peter Ndlovu. He was sworn in, but before he commenced to give his evidence, a complaint was raised by the prosecutor that he had been in court all along during the hearing of the matter. The State therefore objected to his testifying.

The court then put it to the accused that the witness had been in attendance throughout the hearing of the case. The accused denied that he had been in attendance. The court then went on to ask the witness himself. A question was put to the witness, most probably by the court itself, to which the witness answered that indeed he had been in court. The court then addressed the accused and informed him that the witness could not be credible, and the witness was apparently excused from giving his testimony. The defence case was then closed.

The court thereafter proceeded to deliver its judgment and convicted the accused on the two counts of stock theft for which he had been tried. What is clear is that the court did not handle these witnesses fairly, and that extends to the handling of the accused. The second witness was asked one question and answered it in a manner which was deemed inaudible. He was not told to speak up or to speak clearly. He was simply abandoned.

The starting point in addressing this matter indeed lies with the very decision of this court in *Masimba Garande vs The State* HH *46-2002 on p8*. The court was faced with a similar state of affairs and held as follows: -

> The appellant's request to call his wife was turned down on the basis that she was sitting in court when he testified. This does not seem to be a valid reason for turning down his request. There is no legal basis as this fact only affects the weight to be attached to her testimony. In any event the learned trial magistrate should have asked the appellant at the commencement of his defence case and ensured that any such defence witnesses wait outside during his testimony. There are too many loose ends in this case.

Despite the witness having been in court, the court had a duty to hear his evidence and thereafter make the relevant conclusions on it. If it were to accept the

evidence, it could have accepted it, and if it was not going to accept that evidence it could have disapproved of it. This is not equivalent to denying the witness an opportunity to testify at all. It is not legally correct for a court to refuse to hear the evidence on the basis that the witness may have been sitting in court. At present it is not known what he was going to state. That limited and adversely affected the court's judgment on the matter.

Therefore, there is no reasonable basis in the manner in which the matter was handled that would persuade me not to find for the applicant. It follows that there are sufficient grounds upon which the two grounds of review ought to be upheld and the prayer being sought granted

Accordingly it is hereby ordered as follows: -

1) That the present application for Review Succeeds;
2) That the criminal proceedings under case number CRB Number TSHO 270/25 are not in accordance with real and substantial justice;
3) That the conviction and sentence under case number CRB Number TSH270/25 be and is hereby quashed.
4) That the Criminal Proceedings under case number CRB Number TSHO 270/25 be and are hereby remitted to the Court a quo for a trial de novo before a different Magistrate.
5) That there be no order as to costs.

Ndlovu Mehluli & Partners, applicant's legal practitioners
National Prosecuting Authority, respondents' legal practitioners